



AMENDMENT TO EXCLUSIVE RIGHT TO SELL LISTING AGREEMENT

AMENDMENT # _____



SELLER: _____

BROKERAGE ORGANIZATION (hereinafter referred to as "Listing Broker"): _____

PROPERTY: _____

DATE OF EXCLUSIVE RIGHT TO SELL LISTING AGREEMENT: _____

Seller acknowledges that there are not any standard Compensation rates, and the Compensation in this Agreement is fully negotiable and not set by law, any Board or Association of REALTORS®, any multiple listing service (MLS), or in any manner other than as negotiated between Broker and Seller. Seller should discuss Compensation and the scope of services to be provided for such Compensation options with Listing Broker or its Designated Agent(s). Listing Brokers can set their own Compensation and fees based on what services are offered and their business model in the competitive marketplace.

On or about August 14, 2024, the Bright MLS system will remove from its Active Listing fields all references to any amount of Buyer's Broker Compensation being offered by a Seller or Listing Broker. In addition, a new field will be added to its Active Listing fields for Seller Concessions.

Therefore, effective on _____ (if left blank, August 14, 2024), the above referenced Exclusive Right to Sell Listing Agreement is modified as follows:

1. Section 9 (BROKERAGE FEE) shall be deleted in its entirety and replaced with the following:

COMPENSATION. Seller shall pay Compensation as follows:

A. Listing Broker Compensation. Seller agrees to pay Listing Broker Compensation of _____ (% of the gross selling amount OR flat fee) plus _____ for services rendered, if, during the term of this Agreement (or extension): (1) Listing Broker or other Cooperating Broker produces a Buyer ready, willing and able to purchase subject Property at the listed price/terms contained in this Agreement or other price/terms acceptable to Seller; or (2) subject Property is sold or exchanged by any person whomsoever including Seller.

Seller acknowledges that a Buyer may choose to be unrepresented. In such event, the Listing Broker may need to perform additional ministerial tasks that would otherwise be performed by a Buyer's Broker. Seller agrees to pay Listing Broker an additional Compensation of _____ (% of the gross selling amount OR flat fee) plus _____ for additional services rendered in the event the Buyer is not represented by any Broker.

B. Buyer's Broker Compensation. Seller acknowledges that offering Compensation to a Buyer's Broker is not required by law. Buyer Broker Compensation may be discussed during negotiations at the time an offer from a Buyer is received. Other Compensation models may be negotiated on a separate addendum attached hereto.

All Compensation specified above shall also be due as specified above in the event subject Property is sold, conveyed, or otherwise transferred by Seller within _____ days after expiration or cancellation of this Agreement to a Buyer introduced to subject Property by Listing Broker or other cooperating Broker during the term of this Agreement. (This provision does **NOT APPLY** in the event subject Property is listed with another Broker at time of sale).

If not previously paid, the settlement attorney is hereby irrevocably authorized and directed to collect the Compensation as specified in this Agreement and pay the same to the Broker at final settlement as a convenience to the parties, and not as a limitation upon Seller's liability to pay the Compensation.

Seller's Initials

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2. Section 10 (CO-OPERATION) shall be deleted in its entirety and replaced with the following:

AUTHORITY TO COOPERATE WITH OTHER BROKERS.

- A. *Listing Broker shall be authorized to cooperate with other Brokers retained by prospective Buyers to represent the Buyer's interests (Buyer's Agent).*
- B. *Listing Broker shall also be authorized to cooperate with other Brokers as subagents of the Listing Broker (subagents).*

☐ Yes ☐ No

3. The following additional section shall be added:

SELLER CONCESSIONS. ☐ Yes ☐ No

Seller concessions may be offered by Sellers to assist Buyers with closing costs but are not required. Seller authorizes Listing Broker to market Seller's willingness to consider concessions to be paid towards Buyer's closing costs at settlement with an acceptable offer.

4. ADDITIONAL TERMS.

All other terms and conditions of the Exclusive Right to Sell Listing Agreement shall remain unchanged and in full force and effect.

SELLER Date _____

SELLER Date _____

Acceptance by Broker (or Authorized Representative) Date _____

This Amendment is binding once signed by all parties, including the Listing Broker or their Authorized Representative.

Seller's Initials